



File No.: EXP202312077

RESOLUTION OF PROCEDURE ON RIGHTS

Having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On July 13, 2023, a complaint was received by this Agency from Mr. A.A.A. (hereinafter, the complainant) against CAIXABANK PAYMENTS & CONSUMER EFC, EP, S.A.U. (hereinafter, the respondent) for not having duly attended to his right to erasure.

The complainant states that, after requesting the erasure of his personal data from the respondent, the latter sent a response indicating that the erasure was being processed. Notwithstanding the above, he points out that his data continues to be included in the credit information system Asnef.

Along with his complaint, he provides:

- Response from the respondent, dated June 22, 2023, in which, in response to his request for "(...) cancellation of the data registered in the BADEXCUG/Experian and ASNEF/Equifax files, and any other solvency files in which he may have been included," they indicate that "(...) once the appropriate checks have been carried out, we are pleased to inform you that we are currently making the necessary modifications so that your data declared by any entity of the CaixaBank Group does not appear in the negative solvency files BADEXCUG/Experian and ASNEF/Equifax."
- The response received from Equifax, dated July 7, 2023, denying his request for erasure of his data, as such data has been confirmed by the creditor entity Caixabank Payments & Consumer EFC, EP, S.A.U due to the existence of a debt.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The respondent stated:

"1.-) The complainant alleges that CaixaBank Payments & Consumer indicated to him, on June 29, 2023, that the Entity was making the necessary modifications so that the complainant's data would not appear in solvency files. (...)

The complainant also alleges that, on June 7, 2023, his data was included in solvency files, and provides documentation related to the Experian file.

It is noteworthy that in the letter from CaixaBank Payments & Consumer it is indicated that the procedures are being carried out, but it is not confirmed that the data has already been excluded from the credit information systems, as this procedure involves a series of prior actions. CaixaBank Payments & Consumer provided this response because the debt owed by the complainant was under review for inclusion in a portfolio sale of credits.

Finally, the credit associated with the complainant was not included in the portfolio sale that CaixaBank Payments & Consumer had planned. Notwithstanding the above, the complainant's data ceased to be communicated to credit information systems on August 7, 2023. Furthermore, as of the date of this response, CaixaBank Payments & Consumer does not declare data related to the interested party in credit information systems. (...)"

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the complainant's claims to be considered satisfied, given that the respondent has responded to the transfer made by the AEPD, in accordance with the provisions of Article 65.4 of the LOPDGDD, indicating the measures adopted regarding the complaint. However, it does not provide proof of compliance with the obligation to respond to the request for the exercise of the right to erasure of the complainant, as provided in Article 12.4 of the LOPDGDD.

Consequently, on October 13, 2023, for the purposes provided in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data agreed to admit the complaint for processing.

The respondent indicates that it has proceeded to send a letter to the complainant, providing a copy of it, informing him that "(...) we have registered in our systems the contracts or commercial relationships that we indicate below: Live application number: (...)

For this reason, it is not possible to proceed with the erasure of your personal data included in our systems without first canceling these contracts or commercial relationships, as the data fulfill the purpose of enabling us to manage them.

Consequently, we kindly ask you that, if you wish for your personal data to be erased from our files, you first proceed to cancel the contracts or commercial relationships related."

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/7

FOURTH: After examining the written submission presented by the respondent, it is transferred to the claimant, so that, within a period of ten working days, they may formulate the allegations they deem appropriate, failing which no allegations will be considered within the established timeframe.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Data Protection Agency is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints submitted by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have designated a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the complaint was transferred to the respondent for analysis, requiring a response to this Agency within one month and to demonstrate that they had provided the claimant with the appropriate response.

The result of this transfer did not satisfy the claims of the claimant. Consequently, on October 13, 2023, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint submitted was admitted for processing. This admission for processing determines the opening of the present procedure for failure to respond to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, which states:

"When the procedure refers exclusively to the failure to respond to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the

claimant was notified of the admission agreement. After this period, the interested party may consider their complaint to be upheld."

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers to correct any infringement of the GDPR, including "ordering the data controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation."

III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. These include the rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to the provisions expressed in Recitals 59 and following of the GDPR.

In accordance with these regulations, the data controller must establish means and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless they can demonstrate that they are unable to identify the data subject, and to state their reasons if they do not intend to comply with such a request. The burden of proof for compliance with the obligation to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication directed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and plain language.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

5/7

IV

Right to Erasure

Article 17 of the GDPR, which regulates the right to erasure of personal data, establishes the following:

"1. The data subject shall have the right to obtain from the controller the erasure of personal data concerning them without undue delay, and the controller shall be obliged to erase personal data without undue delay when one of the following circumstances applies:

- a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;
- b) the data subject withdraws consent on which the processing is based in accordance with Article 6(1)(a) or Article 9(2)(a), and there is no other legal ground for the processing;
- c) the data subject objects to the processing pursuant to Article 21(1), and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21(2);
- d) the personal data have been unlawfully processed;
- e) the personal data must be erased for compliance with a legal obligation in Union or Member State law to which the controller is subject;
- f) the personal data have been collected in relation to the offer of information society services referred to in Article 8(1).

2. When the controller has made the personal data public and is obliged, under paragraph 1, to erase such data, the controller, taking into account available technology and the cost of implementation, shall take reasonable steps, including technical measures, to inform controllers that are processing the personal data of the data subject's request for erasure of any links to, or copies or replications of, those personal data.

3. Paragraphs 1 and 2 shall not apply to the extent that processing is necessary:

- a) for exercising the right of freedom of expression and information;

- b) for compliance with a legal obligation which requires processing by Union or Member State law to which the controller is subject, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- c) for reasons of public interest in the area of public health in accordance with Article 9(2)(h) and (i), and paragraph 3;
- d) for archiving purposes in the public interest, scientific or historical research purposes or statistical purposes in accordance with Article 89(1), in so far as the right referred to in paragraph 1 is likely to render impossible or seriously impair the achievement of the objectives of that processing, or
- e) for the establishment, exercise or defense of legal claims."

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

6/7

V

Conclusion

The rights procedure is initiated as a result of the denial of any of the rights regulated in data protection legislation. Therefore, in this case, only the facts related to those rights will be analyzed, excluding other issues.

In the case analyzed here, and taking into account the provisions of the first paragraph of this Legal Basis, it has been established that the complainant requested the erasure of their data in the solvency files, and that the respondent informed them that they were making the necessary modifications so that their data would not be reported by any entity of the CaixaBank Group to the negative solvency files BADEXCUG/Experian and ASNEF/Equifax.

However, when the complainant requested the erasure of their data from Equifax, this entity denied the right because the data had been confirmed by CaixaBank, the creditor entity.

During the processing of this file, the respondent indicated that when they replied to the complainant, the necessary modifications were still being made, and that their data was no longer present at the time of responding to this Agency. However, the respondent had not provided any documentary evidence that would allow considering that they had expressly responded to the complainant informing them that their data was no longer present in the solvency files.

Nevertheless, during the processing of this rights procedure, the respondent sent a letter to the complainant denying the erasure of their data as they have active contracted products.

The aforementioned regulations do not allow the request to be disregarded as if it had not been made, leaving it without the response that controllers are obliged to issue, even in cases where there are no data of the data subject in the entity's files or even in those cases where the requirements set out are not met, in which case the recipient of such a request is also obliged to require the remedy of the observed deficiencies or, where appropriate, to deny the request with reasons indicating the causes for which the right in question cannot be considered.

Therefore, the request made obliges the controller to provide an express response, in any case, using any means that justifies the receipt of the response.

In this case, however, it is noted that during the processing of the complaint that gives rise to this procedure, formulated precisely due to the lack of an adequate response to the request for the exercise of rights, the respondent has provided documentation proving the communication sent to the data subject denying

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

7/7

reasoned request. This response, therefore, occurs once the established deadline has been exceeded.

In this regard, it should be specified that the response that corresponds to be made cannot be expressed merely as an administrative procedure. Consequently, considering that the purpose of this procedure is to ensure that the guarantees and rights of the affected parties are duly restored, combining the information contained in the file with the regulations referred to in the preceding sections, it is appropriate to uphold this claim on formal grounds due to the response being issued late, without requiring additional actions by the data controller in order to issue a new certification regarding the exercise of the right.

In view of the cited provisions and other generally applicable regulations, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD on formal grounds, the claim filed by Mr. A.A.A. against CAIXABANK PAYMENTS & CONSUMER EFC, EP, S.A.U. However, the issuance of a new certification by the respondent is not warranted, as the response was issued late, without requiring additional actions by the responsible party.

SECOND: TO NOTIFY this resolution to Mr. A.A.A. and to CAIXABANK PAYMENTS & CONSUMER EFC, EP, S.A.U.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

1381-090823

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es